

Data Processing Agreement -- Cloudy SaaS Inc

This Data Processing Agreement ("DPA") is entered into between Cloudy SaaS Inc ("Vendor") and the Customer identified in the applicable Order Form.

1. Breach Notification. Vendor will notify Customer within 30 of becoming aware of a confirmed Personal Data breach affecting Customer's data.
2. Limitation of Liability. Vendor's liability arising out of or related to this DPA is capped at 12 months of fees paid by Customer in the twelve months preceding the claim.
3. Audit Rights. Customer may request evidence of Vendor's compliance with this DPA no more than once per calendar year, subject to reasonable advance notice.
4. Subprocessors. Vendor discloses the following subprocessor engaged in the processing of Customer's data: AWS us-east-1, providing cloud hosting infrastructure, located in the USA.
5. Data Deletion. Upon termination of the underlying agreement, Vendor will delete or return all Customer data within the period specified in the Order Form's Termination Assistance schedule.